

Plaintiff appears to argue that the irreparable harm he will suffer is homelessness if he is evicted from his apartment. The possession of the Property, however, is not at issue in this matter. That is the focus of the currently pending unlawful detainer action. As noted by the Federal Court, "Plaintiff will have the opportunity to assert his rights and defenses," including his ADA claims, in that action.

The prayer for relief in the operative First Amended Complaint does not seek any order related to the possession of the Property. Instead, it seeks compensatory damages (§ 125), statutory damages (§ 126), punitive damages (§ 127) and 'injunctive relief' (§ 128). The injunctive relief sought includes: (1) institutional reforms to accommodation policies; (2) fair housing training for all employees; (3) monitoring of civil rights compliance; and (4) remediation of hostile environment.

By way of this complaint, Plaintiff is principally seeking damages and all the claims made therein – if proved – can be fully compensated via an award of damages. Accordingly, Plaintiff has failed to show that he will be irreparably harmed if a preliminary injunction does not issue.

Conclusion

"The power to issue preliminary injunctions is an extraordinary one and should be exercised with great caution and only where it appears that sufficient cause for hasty action exists." (*West*, supra, 186 Cal.App.2d at 565.) They should only be issued when there is a "clear showing that the threatened and impending injury is great, and can be averted only by injunction." (*Western Electroplating Co.*, supra, 172 Cal.App.2d at 283.) The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (*O'Connell*, supra, 141 Cal. 4th at 1481.)

Plaintiff has failed to meet his burden to show that a preliminary injunction should issue. For all the reasons set forth above, Plaintiff's request is **denied**.

13. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO DAVID J. DICKENS FOR PLTF RICHARD CLASEN
FILED BY: CLASEN, COLLEEN R.
TENTATIVE RULING:
Granted.

14. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO STACHIA REUWSAAT FOR DEF SYNGENTA
FILED BY: SYNGENTA AG
TENTATIVE RULING:
Granted, subject to submission of proof that the application was submitted to the State Bar.

15. 9:00 AM CASE NUMBER: MSC18-00956
CASE NAME: EUBANKS VS YAPSTONE
***HEARING ON MOTION IN RE: RE: COMPLIANCE HEARING**
FILED BY: